

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT  
IN AND FOR MANATEE COUNTY, FLORIDA  
**COUNTY CIVIL**

COLONIAL MOBILE MANOR, LIMITED,  
LLLP d/b/a COLONIAL MOBILE MANOR,  
Plaintiff,

vs.

Case No. 2015-CC-

KAREN JEAN MORRIS and  
ANY UNKNOWN TENANT(s),  
Defendants.

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**COMPLAINT SEEKING EVICTION, DAMAGES  
AND OTHER RELIEF**

Plaintiff, COLONIAL MOBILE MANOR LIMITED, LLLP d/b/a COLONIAL MOBILE  
MANOR, sues the Defendants, KAREN JEAN MORRIS and ANY UNKNOWN TENANT(s), in  
possession of certain premises more fully described below, and alleges:

**COUNT I**  
**ACTION FOR POSSESSION**

1. This is an action for removal of mobile home park lot tenants and possession of the real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a limited liability partnership owning and operating a mobile home park located in Manatee County, Florida.
3. Defendant, KAREN JEAN MORRIS, is a natural person believed to own a double wide mobile home located at 900 - 9<sup>th</sup> Avenue East, Lot #123, Palmetto, Manatee County, Florida, 34221.
4. Defendant, ANY UNKNOWN TENANT(s), may reside on real property at 900 - 9<sup>th</sup>

Avenue East, Lot #123, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.

5. Plaintiff owns, in fee, the real property located at 900 - 9<sup>th</sup> Avenue East, Palmetto, Florida, 34221, known as COLONIAL MOBILE MANOR, including Lot #123.

6. Plaintiff, as landlord, leased to Defendant, KAREN JEAN MORRIS, Lot #123 of the above stated mobile home park at a monthly rental fee of \$412.00. Pursuant to Fla. Stat. §723.031 the term of all leases for mobile homes in mobile home parks are continuous one (1) year terms.

7. Defendants, KAREN JEAN MORRIS and ANY UNKNOWN TENANT(s), reside in the mobile home located at Lot #123 of Colonial Mobile Manor, 900 - 9<sup>th</sup> Street East, Palmetto, Florida.

8. The Defendant, KAREN JEAN MORRIS, has violated the Rules and Regulations of Colonial Mobile Manor, more specifically, Rule #7 which read:

*“7. **LOT & HOME MAINTENANCE** - The Home Owner shall maintain the lot and the exterior of the home in a neat and clean manner and shall have the home pressure cleaned or painted as required by Management. Storage is not permitted on the patio, in the driveway, or on the lot. Home Owners shall maintain the trees, plants, shrubs, and lawn (mow, trim, edge, fertilize, etc.) on their lots. Summer lawn maintenance requires mowing once a week. Watering the lawn is allowed before 9 A.M. or after 5 P.M., or in accordance with any government watering regulation. Excessive watering causing water run-off into the street is prohibited. Planting or removal of trees and plants on the lot requires the Park Owner's approval. Should it become necessary, because of neglect, for the management to maintain the lawn, the cost to the Home Owner will be \$50 per mowing, trimming, and edging.”*

A copy of the Rules and Regulations of the Plaintiff are attached to this Complaint as Plaintiff's Exhibit A.

9. On July 14, 2014, the Defendants, KAREN JEAN MORRIS and ANY UNKNOWN TENANT(s), were notified by certified mail, return receipt requested, that they were in violation of

Rule #7, for using the driveway and patio for storage. Said Defendants were provided seven (7) days to correct the non-compliance pursuant to Fla. Stat. §723.061(1). Copies of the letter and certification are attached to this Complaint as Plaintiff's Exhibit B. The notice provided the specific remedy for the violations.

10. On February 10, 2015, the Plaintiff served on Defendants, KAREN JEAN MORRIS and ANY UNKNOWN TENANT(s), notice pursuant to Florida Statute §723.061(c), of the termination of said Defendants right to reside in the premises of the Plaintiff based upon their having failed to correct the violations. A copy of the Notice of Violation of Park Regulations (Second Notice) and certification are attached hereto as Plaintiff's Exhibit C.

11. As of the date of the filing of this Complaint, the Defendants, KAREN JEAN MORRIS and ANY UNKNOWN TENANT(s), have not complied with the Rules and Regulations of Colonial Mobile Manor, Rule #7.

12. Plaintiff, COLONIAL MOBILE MANOR LIMITED, LLLP, has not accepted rent from Defendants since it last notified them of the termination of the lease, that is, for the months of February 2015 to date.

13. Defendants have refused and failed to remove themselves from the premises.

14. If determined by the Court that Defendants are tenants at sufferance, the Defendants will owe the Plaintiff double rent for all months in which they are tenants at sufferance.

15. The Defendants, KAREN JEAN MORRIS and ANY UNKNOWN TENANT(s) owe rent late fees, overdue water and sewer bills, and utility late fees, plus double rent for which they continue to hold over, if so determined.

16. ANY UNKNOWN TENANT(s), may reside or have an interest in Lot #123 of

COLONIAL MOBILE MANOR but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

17. Pursuant to Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of costs and reasonable attorney fees.

**WHEREFORE**, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, KAREN JEAN MORRIS and ANY UNKNOWN TENANT(s), and such other and further relief as the Court may deem proper.

**COUNT II**  
**ACTION FOR DAMAGES**

18. This is an action seeking less than \$5,000.00 excluding costs, interest and attorney fees.

19. Plaintiff re-alleges the facts contained within paragraphs 1 through 17 as though fully set forth herein.

20. Defendant, KAREN JEAN MORRIS, owes the Plaintiff a sum not exceeding \$5,000.00 for overdue water and sewer bills, utility late fees, plus interest, costs of maintenance to the lot, court costs and a reasonable attorney fee arising out of the bringing of this instant cause of action.

**WHEREFORE**, Plaintiff requests this Honorable Court enter a judgment against Defendant, KAREN JEAN MORRIS, for damages, costs, and attorney fees.

**COUNT III**  
**ACTION TO ENFORCE LANDLORD'S LIEN**

21. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and

713.77 of Florida Statutes.

22. The Plaintiff re-alleges the facts contained within paragraphs 1 through 17 and paragraph 20 as though fully set forth herein.

22. Defendant, KAREN JEAN MORRIS, is the registered owner of a:

*double wide 1976 NOBILITY HOMES, INC. mobile home, Vehicle Identification No. N5761A and N5761B*

located on Lot #123 of the property leased by the Plaintiff to Defendants, KAREN JEAN MORRIS and ANY UNKNOWN TENANT(s).

24. The Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendants for unpaid rent, utility bills, late fees, maintenance fees, court costs and a reasonable attorney fee for the pursuit of this eviction and for related relief.

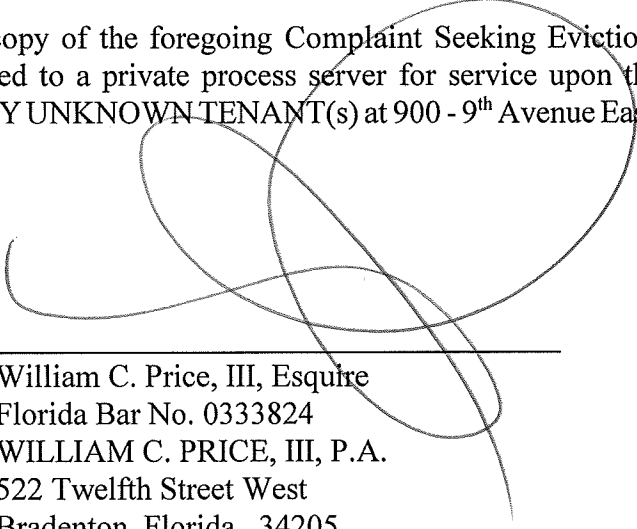
25. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031.

26. The Plaintiff is entitled to credit toward the purchase of said mobile home in the sum representing all of Plaintiff's judgment against the Defendant, KAREN JEAN MORRIS, all costs of this proceeding and reasonable attorney's fees.

**WHEREFORE**, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

**CERTIFICATE OF SERVICE**

**I HEREBY CERTIFY** that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendants, KAREN JEAN MORRIS and ANY UNKNOWN TENANT(s) at 900 - 9<sup>th</sup> Avenue East, Lot #123, Palmetto, Florida, 34221.



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